

Leave and Time Off Work Policy

Issue Date	Review Date	Version
February 2024	February 2029	6.1

Purpose

To outline entitlement to leave and other forms of time off and describe the associated processes.

Who should read this document?

All staff other than Medical and Dental staff, who should refer to their leave policies for medical and dental staff.

Key Messages

This Policy intends to provide a consistent process for the management of leave. The Trust recognises the importance of leave to employees and is committed to accommodating, where possible, all forms of leave commensurate with departmental staffing levels.

Special consideration should be given to those requesting leave as part of a protected characteristic. These are age, disability, gender reassignment, marriage and civil partnership, pregnancy and maternity, race, religion or belief, sex, and sexual orientation.

The Trust acknowledges and supports the need for a work-life balance, in particular the need to have breaks from work to ensure employees wellbeing is maintained.

Core accountabilities

Owner	People Directorate
Review	JSNC
Ratification	Director of People
Dissemination (Raising Awareness)	People Directorate
Compliance	People Directorate

Links to other policies and procedures

Maternity Leave Policy
Paternity Policy
Parental Leave Policy
Carers Leave Policy
Clinical Department Rostering Policy
Sickness Absence Policy
Flexible Working Policy
Grievance and Dispute Policy
Learning, Development and Study Leave Policy
Trade Union Facility Time Policy
[Document Library - Home \(sharepoint.com\)](#)

Version History

2	March 2009	Amendment due to legal changes
3	June 2012	Amendment due to legal changes
4	March 2013	Full Review
5	October 2017	Amendment due to AFC change to maternity leave b/h accrual
5.1	November 2018	Extended to April 2019 by HR SMT
5.2	August 2019	Extended to February 2020 by Richard Maguire & Lisa White
5.3	June 2020	Extended to May 2021 by Lisa White
5.4	August 2021	Extension Granted until September 2022
5.5	March 2022	Special Leave record form added – appendix 3
5.6	July 2022	Amendment to Paragraph 3.6.3
6	November 2023	Reviewed by Policy Sub Group
6.1	September 2024	Reviewed by Policy Sub Group – minor changes

The Trust is committed to creating a fully inclusive and accessible service. Making equality and diversity an integral part of the business will enable us to enhance the services we deliver and better meet the needs of patients and staff. We will treat people with dignity and respect, promote equality and diversity and eliminate all forms of discrimination, regardless of (but not limited to) age, disability, gender reassignment, race, religion or belief, sex, sexual orientation, marriage/civil partnership and pregnancy/maternity.

**An electronic version of this document is available on Trust Documents.
Larger text, Braille and Audio versions can be made available upon
request.**

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1 Introduction

The Trust recognises the importance of leave for employees and is committed to accommodating where possible all forms of leave commensurate with departmental staffing levels.

2 Purpose and Responsibilities

2.1 Scope, aims and objectives

To outline entitlement to leave and other forms of time off and describe the associated processes.

The aims and objectives of this policy are to:

- Support a culture which enables all employees to balance work requirements with outside commitments.
- Develop positive employment practices and benefits which promote equality of opportunity in employment.

Values	Expected Employee behaviours	Expected Management supportive behaviours
We put people first	Follow organisational leave policies when requesting time off.	Consider each request taking into account staffing numbers, but also the individual's needs at this time.
We take ownership	Take responsibility for your own leave entitlement, requesting time off throughout the leave year to ensure you have adequate breaks from work.	Create a culture where employees feel they can approach management for such requests, especially if at short notice.
We respect and value others	We are one big team which functions best when we all practice kindness. Have consideration of colleagues need for time off also if your request is very short notice or may require roster adjustment.	Recognise that employees have different needs, and some requests may be as a result of an external factor.
We are compassionate	Recognising your request may not be agreed to your satisfaction however consider ongoing communication to resolve for everyone's benefit.	Listen to your employee's request and work together to find agreeable solutions.
We listen, learn and improve	If all leave has been allocated, talk with colleagues about your need if they can support with cover, making this easier to request with Manager.	Ensure all employees are aware of the procedure for requesting leave and time off.

2.2 Types of Leave

Types of leave available include:

- Annual Leave
- Career Break
- Crisis Leave
- Time off in Lieu
- Other paid and unpaid leave
- Maternity, adoption, Parental, shared parental and Paternity Leave
- Carers Leave
- Study Leave
- Bereavement leave
- Time off for appointments

2.3 Responsibilities

Trust Board

- The Trust Board is responsible for seeking assurance that the Trust maintains a satisfactory and robust process for the management of leave.
- The Director of People, through the Safety and Culture Committee is responsible for ensuring that the policy is working effectively, and any breaches are addressed promptly.

The People Directorate

- The People Directorate will provide advice and guidance to line managers and their team members on this policy.

Line Managers

- Line Managers will support their employees with the implementation of this policy, ensuring the relevant processes relating to the allocation and management of leave and time off is properly considered and managed in a timely way. This is also to support breaks from work and to consider the wellbeing of our employees.
- Manager should update the e-roster to show employees leave entitlements: at start of contract; during any changes to contracted hours and at the start of each leave year.
- Managers can authorise special leave arrangements on e-roster, ensuring the employee completes the Special Leave record form in Appendix 3 of this document for local records. Please note that bereavement leave should be recorded following the period of bereavement leave.

Employees

- Employees must apply for annual leave in advance to ensure line managers can consider authorising requests subject to staffing levels and the needs of the service. Employees should not book holidays/flights until annual leave has been agreed.

- Employees are responsible for managing their leave entitlement and for arranging to take it throughout the leave year, which will reduce the likelihood of leave being lost.
- Employees will follow the processes for requesting and using their annual and other forms of leave as described in this policy. Special leave should be documented once authorised using the Special Leave record form in Appendix 3 of this document.

3 Process

3.1 Annual Leave

- 3.1.1 This policy outlines the roles and responsibilities of both individuals and managers when requesting and approving annual leave. Requests for annual leave should balance the needs of both service and the individual.

The annual leave year starts on the 01 April and ends on the 31 March. Bank holiday and annual leave entitlement must be reviewed / recalculated on a yearly basis. Employees must review their allocation and raise any queries as soon as possible.

Applications for leave should be submitted via Employee Online (where not available submit via locally agreed process). All annual leave should be recorded on e-Roster / Healthroster or local employee records.

Managers should respond to leave requests and provide a decision within a reasonable timeframe.

Where a leave request cannot be accommodated, the manager must discuss in person the reasons why and document on e-Roster or in the employee's local file. Employees should normally take their annual leave allowance within the annual leave year. Exceptions may be made in particular circumstances, such as for example, when annual leave has been cancelled or withheld by the line manager due to pressure of work.

In exceptional circumstances and at managers discretion, employees may be allowed to carry over up to one working week's leave into the next leave year or a payment made, except in cases of sickness absence see section 3.1.2 below.

Bringing forward of Annual Leave

All employees can request up to one working week's annual leave from their next year's annual leave entitlement where they have insufficient leave for unexpected or exceptional circumstances. Requests must be made in writing and are subject to approval by the Line Manager. In the event the employee leaves the Trust part way through the following leave year, if more leave has been taken than the pro rata annual leave entitlement at the date of leaving, the final month's salary will be adjusted accordingly.

Buying additional Annual Leave

Employees can request to buy up to two weeks (pro-rata) additional annual leave through salary deduction. This may be authorised by line managers, subject to the

needs of the service, impact on performance and must not incur any additional cost to the Trust. In some cases, an additional 2nd tier approval following authorisation from line managers may be necessary. [Line manager assistance \(sharepoint.com\)](#)

Annual Leave and Sickness Absence

- 3.1.2 Employees are entitled to request periods of leave during long term sickness and the employer may also offer this to the employee. Where this is mutually agreed it may negate the carry-over of leave to the next financial year. Any employee not wishing to take leave during periods of long-term sickness will continue to accrue statutory leave and should they be unable, or not facilitated, to take their leave due to operational pressures, within the remaining period of the leave year can carry this over, subject to a maximum of 28 days statutory leave, (pro rata for part time employees). Bank Holiday hours are not accrued during periods of sickness absence. Managers should ensure this is adjusted on e-Roster during periods of sickness absence.

Employees who are sick during annual leave must follow the normal sickness reporting procedure and provide a medical fit note for the complete period of sickness. Annual leave will only be reimbursed in these circumstances. Where a GP charges for a statement of fitness to work, the cost will be met by the employee to enable the reimbursement of annual leave.

Reckonable Service

- 3.1.3 An employee's previous service with a NHS employer counts as reckonable service when calculating annual leave, subject to the provisions of Agenda for Change (AFC).

Changes in Hours

- 3.1.4 Where employees change their contracted hours, this will result in a re-calculation of their annual leave entitlement by the line manager, based upon completed months on the new and old contracted hours to give the full year entitlement. [Line manager assistance \(sharepoint.com\)](#)

End of Employment

- 3.1.5 When it is known that an employee is leaving the Trust, the line manager should calculate any outstanding annual leave and note this on the leavers form. Where possible all annual leave entitlement should be taken before the last working day, using the annual leave calculator [Line manager assistance \(sharepoint.com\)](#)

Annual leave is calculated on the basis of completed weeks worked. Line managers may wish to seek advice from the People Advisory Team on the calculation of any outstanding annual leave entitlement.

Employees who have taken more leave than their earned allowance at their end of employment will have this deducted from their final salary.

Maternity / Adoption / Shared Parental Leave

- 3.1.6 Annual leave and Bank Holidays are accrued during the paid and unpaid maternity, adoption, and shared parental leave period i.e. up to 52 weeks.

Employees are advised to take the recommended percentage of annual leave (as per the Clinical Rostering Policy) prior to the start of the maternity / adoption / shared parental leave period.

Advice on recalculating leave entitlements should come from the People Advisory Team.

New Starters

- 3.1.7 New starters will be allocated annual leave and bank holidays hours proportionate to their contracted hours, start date within the first month and the number of completed months left in the current leave year.

Bank Holidays

- 3.1.8 A bank holiday shall be defined as a period of 24 hours from midnight to midnight.

The bank holidays are as per national terms and conditions.

Once the bank holiday entitlement is calculated this should be added to the employee's annual leave entitlement to give an overall total leave entitlement for the year. All bank holiday leave should be recorded on e-Roster or local employee records.

On each and every occasion an employee takes paid time off on a bank holiday as part of their basic week, the appropriate deduction of their normal working hours for that day should be made from their overall entitlement.

Where operationally possible, and subject to agreement, an employee may change their working days during a bank holiday week.

Extended Periods of Annual Leave

- 3.1.9 There are times when colleagues will request longer periods of annual leave. It is important that full consideration is given to the request to ensure individual needs are met as well as balancing the needs of the service. This policy and department arrangements will set out the notice colleagues need to provide to request leave. Longer periods of annual leave will require additional notice and colleagues are encouraged to plan their leave in line with the Rostering Policy and recognise that last minute requests may not be possible to accommodate.

All extended annual leave will need to be reviewed by managers to reduce staffing impact for operational effectiveness. Extended leave during periods of increased leave activity can be difficult to manage and flexibility with dates may be required. Managers should consider a fair and equitable approach to leave which may include a similar process to religious events and school holidays.

Colleagues should confirm annual leave requests have been approved prior to finalising any travel plans.

Where it is not possible to support the annual leave request the reason should be outlined to the individual with the option for the decision to be reviewed by an independent manager who is more senior than the manager who has made the decision.

Reasons for extended periods of leave will vary although requests often relate to holidays abroad that involve long periods of travel. Many colleagues will have relatives who live in other countries which may require additional support for significant events such as funerals and weddings. Enabling colleagues to follow their cultural or religious practices is essential in fostering an inclusive culture.

Finding a balance in supporting all colleagues to have extended time away from work may be challenging. Senior manager will be expected to take reasonable steps to support individuals with extended leave requests to take account of the needs of the individual and the team. Managers can seek help and advice if they are unable to accommodate requests and this can be through their managers as well as escalating to the appropriate professional leads who will make an informed and equitable decision. Senior managers in departments should review leave allocation through an equality lens to provide assurance that there is equitable allocation of leave across their teams.

3.2 Career Break

- 3.2.1 The Career Break Scheme is intended to help retain employees and skills within the Trust. A career break is an extended period of unpaid leave from work that begins with an intention to resume working at an agreed date in the future.

The scheme is aimed at giving employees (with a minimum of 1 year's continuous service with the Trust) the opportunity to leave their employment for a period of unpaid leave of 3 months to 5 years to undertake the following:

Examples only

- Child care needs
- Eldercare
- Care for other dependants
- Work Abroad
- Domestic or family commitments
- Further training or self-development

This list is not exhaustive.

- 3.2.2 The employee is guaranteed, subject to organisational change, that if they return to work within one year, the same job, on the same terms and conditions, will be available as far as practicable and where agreed at the outset. If the break is for longer than one year, the employee may return to as similar a job as possible. Employees and managers should consider these implications carefully before applying for or agreeing to career breaks. Further advice is available from the People Advisory team.

Application Process

- 3.2.3 An employee wishing to join the Career Break Scheme should take the following action normally at least 3 months before they wish to commence:
- Before making an application for this leave, an employee should check the effects on their pension entitlement.

- Employee should discuss with their line manager the possibility of a career break and put their request formally in writing.
- Line Manager can seek advice from the People Advisory team prior to final agreement ensuring all paperwork is completed.

If the career break has been agreed by their line manager, then the employee will be notified in writing and advised of the terms and conditions of the Career Break Scheme (see template letter below at section 4.4).

Where a request for an application to join the Career Break Scheme is refused, an employee may invoke the Trust's Grievance and Dispute Policy.

Employees must undertake to:

- Keep in touch and update the Trust of their current address.
- Be offered opportunities to attend relevant in-house training sessions.
- Keep professionally updated.
- Repay any outstanding loans from the Trust.

The Trust undertakes to:

- Ensure that employee is eligible to return to work in a post which as far as practicable is on a similar contract and conditions of service, as existed prior to the career break, unless the employee requests that they return to a lower graded post in which case the appropriate grade for the job will apply.
- Ensure that if it is not possible to offer a post due to changes in the service, then prior consideration will be given for re-deployment.
- To provide re-entry training.
- Send regular newsletters.

3.2.4 Employees on a career break will not normally be allowed to take up paid employment with another employer except where, for example, work overseas or charitable work could broaden experience. In such circumstances written authority from the Service Line Manager would be necessary.

3.2.5 The employee is normally required to give 2 month's notice if the break is less than a year, and 6 month's notice if the break is more than a year before they return to work.

3.2.6 If an employee makes a request for flexible working on return from a career break, this will be considered by the line manager in accordance with the Trust's Flexible Working policy.

3.2.7 Employees who decide to terminate their contract of employment should give proper notice as laid out in their contract of employment. Depending on the individual's circumstances, employees may be asked to work their notice period.

Effect on Pensions and Reckonable Service

3.2.8 An employee is entitled to make the first 6 months of a Career Break pensionable by opting to pay Pension Contributions based on the regular Pensionable Salary in payment, prior to the break. The Employee can elect to pay both the Employer's and

Employee's Pension Contributions for a further period up to a maximum of 18 months. This request must be made to the Pensions Advisor prior to the commencement of their career break and the necessary paperwork will be completed for the Payroll Department.

Time on a Career Break does not count as a break in service although it will not count as reckonable service. The effect of this is that an employee's incremental point will be frozen until they return to work. However, the employee's salary on return will include any pay awards which have occurred during the Career Break.

When calculating "reckonable service" for the purposes of redundancy payments under Agenda for Change, the break itself will not count nor will any service prior to the Career Break where the Career Break has lasted more than 12 months in accordance with the provisions of AFC. Employee's statutory rights are not affected.

Employees are strongly advised to seek expert advice from the NHS Pensions Agency on the potential impact of a career break on their pensions before making any decisions.

3.3 Crisis & Bereavement Leave

3.3.1 The Trust is supportive of helping employees balance family and other emergencies and work responsibilities at times of urgent and unforeseen needs. The Trust also recognises that a compassionate response is required in the event of a traumatic event and/or bereavement and makes provision for this within the policy.

3.3.3 Crisis Leave

A maximum of one working week per year can be authorised, this time should be either unpaid leave, annual leave or time in lieu as agreed with your line manager. For longer term leave requirements, please see below.

3.3.4 In addition to short term crisis leave, individuals and managers can consider:

- Additional unpaid leave.
- Annual leave.
- Purchase of additional annual leave where such a scheme is in operation.
- Changes to pattern of work e.g. short-term flexible working hours with the ability to make up lost time at a later stage (refer to Flexible Working policy and procedure).
- Carers leave (please refer to Carer's Leave Policy).
- Parental Leave.

3.3.5 The types of circumstances that may require crisis leave includes, for example:

- If a dependent falls ill.
- Emergency family leave.
- If childcare or other arrangements breakdown at short notice.
- Serious domestic crisis, like a flood, burst pipe, car accident on the way to work.
- Adverse weather conditions preventing employees attending work, including where schools are closed and alternative childcare is not available (please also refer to Severe Weather Procedure).

Application Process

- 3.3.6 Employees applying for crisis leave must contact their manager, or in their absence, the deputy manager as soon as practicable. They must give the reason for their anticipated absence and how long they expect to be away from work. All requests should be considered sympathetically in the light of individual circumstances and the needs of the service.

It is envisaged that employees will request annual leave for situations that can be foreseen or planned in advance.

Crisis leave may be taken in hours or full/part days. If an employee feels that they have been treated unfavourably, they should discuss this with their line manager where possible or can appeal informally to their manager's manager or formally through the Trust's Grievance and Dispute Policy.

3.3.2 Bereavement / Serious Illness

In cases of bereavement or serious illness for immediate family members, the period of **paid** special leave will be up to one working week. Immediate family members include spouse or partner, and the following people in relation to the employee, spouse or partner: mother, father, brother, sister, children and grandparents.

In the difficult circumstances of the death of a child (up to the age of 18 years old) or a child being stillborn after 24 week, employee's may be entitled to 2 working weeks of statutory parental bereavement leave and or pay. This leave can be taken at any time in the first 56 weeks following the death or stillbirth. Manager's and or employees can seek advice from the People Advisory team regarding this.

3.4 Time in Lieu

- 3.4.1 Time in lieu should not accumulate to more than 2 days per month pro rata and will be taken within a maximum of a 3 month period. Exceptionally, with agreement of the Line Manager, this 3 month period may be extended to meet the needs of the service.
- 3.4.2 No time in lieu should be worked without prior agreement with the manager. Time given back should be negotiated and agreed by both parties who should honour their agreement.
- 3.4.3 Time in lieu should be for specific reasons, i.e., covering shortfalls, and not due to poor time management. Managers should record time owing.

3.5 Unpaid Leave

- 3.5.1 In cases where an employee has made a request for unpaid leave, consideration should be given as follows:
- Whether duties can be adequately covered;
 - The impact on the service, colleagues and the department;
 - The total period of unpaid leave is reasonable in all circumstances.

The types of circumstances when unpaid leave can be given include, for example:

- To care for a dependent or close relative who has a serious illness.
- To take an extended holiday.

3.5.2 Whilst on unpaid leave, the employee will not continue to accrue annual leave and bank holidays. If an employee is considering the option of unpaid leave, it is advisable that they check the effects on their pension entitlement before making an application.

Application Process

3.5.3 Employees wishing to take unpaid leave must inform their manager in writing as soon as possible. They must give the reason for their absence and how long they expect to be away from work. All requests should be considered sympathetically in light of individual circumstances and the needs of the service.

3.5.4 Unpaid leave may be taken in full or part days. Where the manager has granted such leave it will be recorded by the manager as unpaid leave.

3.5.5 If an employee feels that they have been treated unfavourably, they can appeal informally to their manager's manager or formally through the Grievance and Dispute Policy.

3.6 Other Types of Leave

3.6.1 Leave for attendance at Court as a witness or for Jury Service

Employees, who are required to attend court either as a witness or as a member of the Jury, shall be granted special paid leave for that purpose. This is on the understanding that any court fees received (as distinct from allowances for travelling and subsistence expenses) are declared to the Trust and contributes in part or wholly to the normal salary of that employee.

3.6.2 Magisterial Duties and Government activities

It should be noted that before an employee takes part in any local government parliamentary or public activities consent must be gained from the employer.

Employees who undertake magisterial duties or government activities, may at the discretion of the Trust (and subject to the requirements of the service), be granted special leave with pay. Full time employees may be granted up to 18 days in any period of 12 months and this will be pro rata for part time employees.

Where local government duties are combined with magisterial duties the total paid leave for the two purposes may not exceed 18 days in any period of 12 months (pro rata for part time employees).

Government activities may include:

- a magistrate
- a local councillor
- a school governor
- a member of any statutory tribunal (for example an employment tribunal)
- a member of the managing or governing body of an educational establishment

- a member of a health authority
- a member of a school council
- a member of the Environment Agency
- a member of the prison independent monitoring boards

3.6.3 Training with the reserve and cadet force

Please refer to the Trust's Reservist and Cadet Force Adult Volunteer Policy for details on leave allowances.

3.6.4 Time off to attend union meetings / branch meetings

Where an employee requires time off to meet with their Trade Union Representative in order to seek advice or prepare for a grievance or disciplinary procedure, they will be paid for this time. (refer to Trade Union Facility Time policy)

Any employee wishing to attend a union branch meeting if it is during working hours, should gain agreement from their departmental head in the first instance and employees should understand that permission may be refused where the service would suffer. Attendance of such meetings will be unpaid.

3.6.5 General special leave provision

Managers have the authority to use their discretion in granting special leave (either paid or unpaid) in other circumstances not covered in this document. Advice on these matters should be sought from the People Advisory Team.

3.6.6. Medical Appointments

We look to do everything we can to support employees to look after their wellbeing and recognise there may be times you need to attend medical or dental appointments including;

- GP, dentist, optician and hospital appointments
- tests and check-ups including eye tests
- health screenings (such as cervical screening, mammographic screening, and prostate cancer screening etc)
- IVF (In Vitro Fertilisation) and other fertility treatment
- vaccinations
- gender reassignment treatment
- counselling and psychotherapy
- rehabilitation and on-going treatment of long-term health conditions.

Wherever possible we ask that appointments are taken outside working hours. However, where this is unavoidable, we ask that, if possible, you make appointments at the beginning or end of your shift to avoid disruption. Where appointments do fall in your working hours the time taken for the appointment will be paid time off. Your line manager will discuss with you what is reasonable time off depending on the circumstances, as we appreciate these will vary greatly.

The Trust will ensure that all reasonable measures are taken to support disabled employees and appreciates that employees with disabilities may require, at particular times, time off specifically for treatment, assessment or rehabilitation related to their disability.

Pregnant employees should refer to the [Maternity leave policy](#) for further information on leave entitlement including time off for antenatal and postnatal appointments.

4.1 Annual Leave request form

Complete on exception only basis if unable to request via Employee Online (Healthroster) - retain on employee local file

Name

Period of Leave

(Inclusive Dates) From Up to & Including

Number of Days/Hours Annual Leave requested in total

Signed **Date**

Authorised **Date**

4.2 Career break letter template

Dear

Further to your discussions withwhen you indicated your wish to join the University Hospitals Plymouth NHS Trust Career Break Scheme, I am now writing to confirm the terms and conditions of the scheme.

The terms of the Career Break are as follows:

You will commence your Career Break onand finish on..... or the next available working day. For the duration of the break, you will still be regarded as an employee of University Hospitals Plymouth NHS Trust . From this date, you will receive no pay and no employer's contribution to National Insurance.

1. You (The Employee) are entitled to make the first 6 Months of a Career Break pensionable by opting to pay Pension Contributions based on the regular Pensionable Salary in payment, prior to the break. You (The Employee) can elect to pay both the Employer's and Employee's Pension Contributions for a further period up to a maximum of 18 Months.

This request must be made to the Pensions Advisor prior to the commencement of this career break and the necessary paperwork will be completed for the Payroll Department.

2. Time on a Career Break does not count as a break in service but is not counted as reckonable service. Your incremental point will be frozen until you return to work, however your salary on return will include any pay awards which have occurred during the Career Break. In addition, when calculating "reckonable service" for the purposes of redundancy payments under Agenda for Change, the break itself will not count nor will any service prior to the Career Break where the Career Break has lasted more than 12 months in accordance with the provisions of Agenda for Change. Your statutory rights are not affected.

3. University Hospitals Plymouth NHS Trust will be undertaking: -

- a) To re-engage in a post which as far as practicable is on a similar contract and conditions of service, as existed prior to the Career Break unless you request to return to a lower graded post in which case the appropriate grade for the job will apply.
- b) The period of the Career Break will not be added to your pensionable service if you choose to opt out of paying pension contributions.
- c) To offer you re-entry training as appropriate.
- d) To offer you opportunities to attend relevant in-house training sessions.
- e) To keep in touch and send you regular newsletters.

4. You will be undertaking:

- a) To indicate that you wish to leave your current post on..... You will not receive any pay.

- b) To confirm 2/6 months [delete as applicable] in advance that you intend to return to work on..... to a post which as far as practicable is a similar contract and conditions of service, as existed prior to the Career Break, unless you request that you return to a lower graded post in which case the appropriate grade for the job will apply.
- c) To keep the Trust advised of your home address.
- d) To re-pay on commencement of the break, any outstanding loans with the Trust.
- e) To keep up to date with developments within the Trust and your profession.
- f) To maintain professional registration and undertake reasonable re-entry training.
- g) Not to accept any paid employment without prior agreement.
- h) To complete an Occupational Health update form and to be re-assessed as fit for employment.
- i) not to take up paid employment with another employer except where, for example, work overseas or charitable work could broaden experience. In such circumstances written authority from the employer would be necessary

This letter outlines the main obligations of the Career Break Scheme. If these are acceptable to you, please sign both copies, returning one copy to me and keeping the other for your own information.

Yours sincerely

LINE MANAGER NAME
LINE MANAGER TITLE

I accept the above Terms and Conditions

Signed: Date:.....

Print Name:

cc. People Advisor Team (*plh-tr.peopleadvisoryteam@nhs.net*)

5	Overall Responsibility for the Document
5.1	The Director of People has overall responsibility for the dissemination, implementation and review of this policy.
6	Consultation and Ratification
6.1	The design and process of review and revision of this policy will comply with the Development and Management of Trust Wide Documents.
6.2	The review period for this document is set as default of 5 years from the date it was last ratified, or earlier if developments within or external to the Trust indicate the need for a significant revision to the procedures described.
6.3	Non-significant amendments to this document may be made, under delegated authority from the Executive Director, by the nominated author. These must be ratified by the Executive Director and should be reported, retrospectively, to the approving group or committee.
6.5	Significant reviews and revisions to this document will include a consultation with named groups, or grades across the Trust. For non-significant amendments, informal consultation will be restricted to named groups, or grades who are directly affected by the proposed changes
7	Dissemination and Implementation
7.1	Following approval and ratification, this policy will be published on the Trust's Staff Hub (<i>click on UHP Policies & Procedures</i>) and all employees will be notified through the Trust's normal notification process.
7.2	Document control arrangements will be in accordance with The Development and Management of Trust Wide Documents.
7.3	The document author(s) will be responsible for agreeing the training requirements associated with the newly ratified document with the named Executive Director and for working with the Trust's training function, if required, to arrange for the required training to be delivered.
8	Monitoring Compliance and Effectiveness
8.1	Monitoring of this policy and its processes will be undertaken within Service Lines by Line Managers, to ensure compliance, with any concerns escalated to the People Partnering team. In addition, corporately, the People Partnering team will monitor annually, the level of special paid leave taken, to identify any areas of concern for action by the People Partner and Line Manager. This policy will be reviewed every 5 years or sooner where employment law or practice requires it, by the People Partnering team and Staff Side.
8.2	The standards and Key Performance Indicators identified with the implementation of this policy are the NHSLA, Standards as determined by the Care Quality Commission.
9	References and Associated Documentation
9.1	The Equality Act 2010

Dissemination Plan			
Document Title		Leave and Time Off Work Policy	
Date Finalised		November 2023	
Previous Documents			
Action to retrieve old copies		Will be removed on publication of this policy.	
Dissemination Plan			
Recipient(s)	When	How	Responsibility
All Trust employees		Information Governance page on Staff Hub	Information Governance Team

Review Checklist		
Title	Is the title clear and unambiguous?	Yes
	Is it clear whether the document is a policy, procedure, protocol, framework, APN or SOP?	Yes
	Does the style & format comply?	Yes
Rationale	Are reasons for development of the document stated?	Yes
Development Process	Is the method described in brief?	Yes
	Are people involved in the development identified?	Yes
	Has a reasonable attempt has been made to ensure relevant expertise has been used?	Yes
	Is there evidence of consultation with stakeholders and users?	Yes
Content	Is the objective of the document clear?	Yes
	Is the target population clear and unambiguous?	Yes
	Are the intended outcomes described?	Yes
	Are the statements clear and unambiguous?	Yes
Evidence Base	Is the type of evidence to support the document identified explicitly?	Yes
	Are key references cited and in full?	Yes
	Are supporting documents referenced?	Yes
Approval	Does the document identify which committee/group will review it?	Yes
	If appropriate have the joint People Directorate/Staff Side committee (or equivalent) approved the document?	Yes
	Does the document identify which Executive Director will ratify it?	Yes
Dissemination & Implementation	Is there an outline/plan to identify how this will be done?	Yes
	Does the plan include the necessary training/support to ensure compliance?	Yes
Document Control	Does the document identify where it will be held?	Yes
	Have archiving arrangements for superseded documents been addressed?	Yes
Monitoring Compliance & Effectiveness	Are there measurable standards or KPIs to support the monitoring of compliance with and effectiveness of the document?	Yes
	Is there a plan to review or audit compliance with the document?	Yes
Review Date	Is the review date identified?	Yes
	Is the frequency of review identified? If so is it acceptable?	Yes
Overall Responsibility	Is it clear who will be responsible for co-ordinating the dissemination, implementation and review of the document?	Yes

Core Information	
Date	November 2023 reviewed Jan 2025
Title	Leave and Time Off Work Policy
What are the aims, objectives & projected outcomes?	The leave policy aims to detail employees entitlement to leave and under what circumstances. It provides guidance for both employees and their managers and provides calculators and templates that should be used when either calculating or applying for leave.
Scope of the assessment	
The Trust will look to ensure that leave arrangements are managed effectively, ensuring requests take account of employees' circumstances and the needs of the service whilst ensuring statutory factors are adhered to.	
Collecting data	
Race	There is no evidence to suggest there is a disproportionate impact on race regarding this policy. Data will be monitored through workforce data reporting and feedback from employees and trade union representatives as required.
Religion	There could be a potential impact on religion. Where religious holidays occur during the calendar year, requests for leave will be in line with the service levels required for that day/period and the individual's requirements – as with any leave request the Trust cannot guarantee leave requests. Data will be monitored through workforce data reporting and feedback from employees and trade union representatives as required.
Disability	There could be a potential impact on disability. Consideration will be made for employees that have or are caring for a child/relative with a disability and reasonable adjustments will be given as appropriate to the circumstances. For example crisis leave/special paid leave/career break. Data will be monitored through workforce data reporting and feedback from employees and trade union representatives as required.
Sex	There is no evidence to suggest there is a disproportionate impact on sex regarding this policy. Lone parents will have access to crisis leave/special paid leave where caring arrangements break down in the first instance. Data will be monitored through workforce data reporting and feedback from employees and trade union representatives as required.

Gender Identity	There is currently no data collected to show the impact in this area, however, this will be monitored through feedback from employees and trade union representatives. Data will be monitored through workforce data reporting and feedback from employees and trade union representatives as required.
Sexual Orientation	There is no evidence to suggest there is a disproportionate impact on sex regarding this policy. Data will be monitored through workforce data reporting and feedback from employees and trade union representatives as required.
Age	There is a potential impact on age. Length of service does dictate the entitlement to Annual Leave, though the entry entitlement does exceed the statutory entitlement. Data will be monitored through workforce data reporting and feedback from employees and trade union representatives as required.
Socio-Economic	There is currently no data collected to show the impact in this area, however, this will be monitored through feedback from employees and trade union representatives.
Human Rights	There is currently no data collected to show the impact in this area, however, this will be monitored through feedback from employees and trade union representatives.
What are the overall trends/patterns in the above data?	No trends or patterns have been identified at this stage.
Specific issues and data gaps that may need to be addressed through consultation or further research	There is currently no legal requirement to monitor data regarding types of leave, except maternity leave. However, data is available through e-Roster and ESR for specific areas for example crisis/special paid leave which could be used for audit purposes should the need arise. There is currently no data to monitor the impact on gender identity, socio-economic and human rights.

Involving and consulting stakeholders				
Internal involvement and consultation	People Partners, Trust Senior Management Team, JSNC			
External involvement and consultation				
Impact Assessment				
Overall assessment and analysis of the evidence	Where religious holidays occur during the calendar year, requests for leave will be in line with the service levels required for that day/period and the individual's requirements – as with any leave request the Trust cannot guarantee leave requests. Consideration will be made for employees who have or are caring for a child/relative with a disability and reasonable adjustments will be given as appropriate to the circumstances. For example crisis leave/special paid leave/career break. Lone parents will have access to crisis leave/special paid leave where caring arrangements break down in the first instance. Length of service does dictate the entitlement to Annual Leave, though the entry entitlement does exceed the statutory entitlement.			
Action Plan				
Action	Owner	Risks	Completion Date	Progress update
Monitoring of workforce data	People Partners/Equality Leads		Ongoing	

SPECIAL LEAVE RECORD FORM

Appendix 3

SECTION A: To be completed by employee					
Name: (In CAPITALS)					
Employee number:					
Job Title:					
Department/Location:					
Type of Special leave requested (please tick)					
Reservist & Cadet Force leave		☐		Jury Service	
Crisis Leave		☐		Witness at Court	
Bereavement / Serious Illness leave (*see footnote)		☐		Magisterial/Local Government/ Parliamentary Candidate	
☐					
Dates for leave	From	To	Returning to work on		
Reason for Request / absence					
Declaration: I declare that the information I have given is correct and complete. I understand that if I knowingly provide false information this may result in disciplinary action. I understand that I am not able to undertake any other work whilst absent unless I have written permission from my line manager					
Employee's Signature:			Date:		
• SECTION B: To be completed by the Manager					
Please ensure that:					
• This form is dealt with in a confidential and sensitive manner. • Leave granted does not exceed the maximum in policy (in the event of exceeding consider granting annual or unpaid leave). • Paid special leave is only granted to employees who met the eligibility criteria. • The employee's e-Roster/ESR record/attendance sheet is completed with the appropriate payroll code.					
Special Leave Granted:		YES ☐		NO ☐	
PAID ☐	HRS	DAYS	UNPAID ☐	HRS	DAYS
If the request is refused detail the reason for the refusal:					
Manager's Signature:					
Manager's Name (CAPITALS):				Date:	

**Bereavement Leave situations – managers please be mindful that situations relating to bereavement leave should be handled sensitively and with compassion. Recording of bereavement leave should be conducted on returning to work as welcome back discussion where the colleague's wellbeing should be checked and any signposting to further support.*